

Calendar Line 5

Case Name: *Mesfin Regassa Ayle et al. v. Keith Laverne Booth et al.*

Case No.: 19CV360439

This is a motion to compel further responses to requests for admissions, form interrogatories, special interrogatories, and requests for production of documents, filed by defendant City of Santa Clara (the “City”) against plaintiff Mesfin Regassa Ayle (“Ayle”). Ayle objects to this discovery and opposes the motion based on numerous arguments that the court finds to be wholly without merit. Indeed, Ayle’s arguments are of the type that the court would expect from someone lacking any familiarity with civil discovery, rather than from someone represented by experienced counsel. Accordingly, the court grants the motion and also grants in part the City’s request for monetary sanctions.

First, Ayle contends that the City has “improperly” combined multiple motions into one and that this is supposedly unfair to him. (Opposition, pp. 3:13-5:2.) The court rejects this argument out of hand. Although it is true that the City could have brought separate motions to compel further responses to its RFAs, interrogatories, and requests for production, there is no rule, statute, or case law that requires it to have done things that way. As long as the moving party complies with the page limits set forth in rule 3.1113(d) of the California Rules of Court, they may raise whatever number of issues they wish to raise in a single motion and opening brief. Ayle’s contention that a single motion here “complicates and confuses the issues to be decided by the trial court” is conclusory and unpersuasive. (Opposition, p. 4:6-7.) The court is not confused, and it finds that a tripling or quadrupling the number of papers for “this motion” to become “these motions” would be even more confusing. Finally, the notion that the combining of motions deprived Ayle of the opportunity to respond to the City’s single 10-page opening brief with oppositions totaling 60 pages is simply absurd.

Second, Ayle alleges that the City failed to identify “the text of all defined terms, instructions, and any other matters required to understand each discovery request and the response to it,” but he does not identify any definitions or instructions that were missing from the City’s papers, and he also does not identify anything that is still needed to understand the requests and responses. (Opposition, p. 5:3-11.) The court has reviewed the parties’ separate statements in support of the motion and the opposition, and it finds that these documents contain sufficient information to understand the discovery requests at issue.

Third, Ayle makes the incomprehensible assertion that the “[a]ttorneys bringing this motion are not the attorneys of record.” (Opposition, p. 5:12-6:27.) Even if this assertion were true, it would not excuse Ayle from responding to the underlying discovery requests at issue. Moreover, Ayle’s assertion appears to be based on the unfounded notion that a “substitution of attorney” form is required whenever different attorneys within the same law firm work on a case. The court has never heard of such a counterintuitive requirement. As noted by the City in its reply, such a requirement would be directly contrary to the case law. (See, e.g., *Ellis Law Group, LLP v. Nevada City Sugar Loaf Properties, LLC* (2014) 230 Cal.App.4th 244, 258 [substitution or association of counsel *not* required for attorneys within the same firm].)

Fourth, Ayle argues that the interrogatories and requests at issue are “duplicative” of earlier requests, but he fails to make any showing of duplication—he does not cite even a single example of a request that is duplicative of a prior request. Instead, he makes the generic argument that the current special interrogatories are “substantially similar” to earlier

interrogatories. This is insufficient. The fact that there may be some overlapping subject matter between requests or interrogatories does not necessarily mean that they are duplicative. More needs to be shown, and Ayle has not shown it.

Fifth, the argument that the City has previously propounded Form Interrogatory No. 17.1 and therefore may not do so again is baseless. The prior iteration of Interrogatory No. 17.1 focused on different requests for admissions; the current iteration of Interrogatory No. 17 focuses on requests for admissions that have not been propounded before. Therefore, it is not “duplicative,” and Ayle’s argument to the contrary betrays a fundamental lack of understanding of how discovery is supposed to work under the Civil Discovery Act.

Sixth, Ayle argues that this discovery constitutes “harassment” and “oppression” of his counsel. (Opposition, p. 9:1-19.) Again, the court has reviewed the discovery requests at issue and finds that they are directed to the core issues in the case—the court discerns nothing on the face of the requests and interrogatories that would constitute harassment or oppression. As for the timing of the requests, Ayle fails to demonstrate any harassing behavior on the part of the City’s attorneys. At most, he shows that his counsel’s spouse was experiencing medical issues with a difficult pregnancy, but then he fails to link this to anything that the City did to exploit this medical situation. (Opposition, pp. 10:7-11:3.) For example, he does not show that counsel requested an extension of time to respond to discovery that was unreasonably refused by the other side. This is yet another apparently meritless argument.

In short, the court finds that all of Ayle’s objections and arguments are not only lacking in merit, but several of them also border on the frivolous. The court would not expect experienced counsel to have asserted such objections and arguments on behalf of their client—again, these are the types of arguments that the court would expect to see from someone completely new to civil discovery in California. Accordingly, the court finds that Ayle and his counsel did not act with any justification—much less “substantial justification”—in opposing this motion to compel. The City has requested \$3,486 in monetary sanctions, and the court concludes that at least some of this amount should be awarded. (As the court has noted in previous discovery motions in this case, the purpose of discovery sanctions is compensatory, not punitive.) The court orders Ayle and/or his counsel to pay the City **\$2,205** in monetary sanctions **within 30 days of notice of entry of this order**. This amount represents eight hours spent preparing the opening brief and 2.5 hours spent preparing the reply brief at \$210/hour. The court holds Ayle and his counsel jointly and severally liable for this amount.

Given the approaching trial date in this matter, the court orders Ayle to provide substantive responses to the discovery requests at issue **within 20 days of notice of entry of this order**.

The motion is GRANTED, and the request for sanctions is GRANTED IN PART.

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